

**Memo.No.3148/SC.E/95-1, Genl.Admn. (SC.E) Dept., dt.19.12.1995 regarding Vigilance Commission's advice - deviation to be avoided.**

**Subject Heading : Vigilance Commission - recommendation, advice to be given due consideration; deviation to be avoided**

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According to the scheme of the A.P.Vigilance Commission approved in G.O.Ms.No.421, General Administration (SC.D) Department, dt.03.08.1993 and instruction 8(6) of the Procedural Instructions of the said Commission, the final report on the allegation of corruption against Government Servants from the Anti-Corruption Bureau, C.B., C.I.D., and other departmental investigating authorities will have to be sent to the A.P.Vigilance Commissioner. The Vigilance Commissioner, after consideration of the said reports, advises the Departments, etc. among others, regarding the prosecution of the Accused Officer in the Court of Law.

2. According to the provision in Business Rule 32(1) (xxxi) read with Secretariat Instruction 68(d), all cases in which it is proposed to deviate from the advice of the A.P.Vigilance Commissioner shall be submitted to the Chief Minister through the Chief Secretary and the Minister in charge. According to the Note inserted after Secretariat Instruction 65, the provisions of the said Instruction 65, which stipulates the procedure for obtaining and taking action on the advice of the A.P.Public Service Commission in disciplinary matters, will mutatis-mutandis apply to the cases in which the advice of the A.P. Vigilance Commissioner is to be sought. The extracts of Business Rule 32 (1) (xxxi), Secretariat Instructions 65 and 68(d) are enclosed for ready reference.

3. While the procedure for dealing with the proposals, if any, for deviating from the advice of the A.P.Vigilance Commissioner is as referred to in para 2 above, it has been brought to the notice of the Government that some of the Departments of Secretariat are occasionally deviating in some cases from the advice of the Vigilance Commissioner at two stages viz.,

- (i) issuing orders in deviation to the advice of the Vigilance Commission for prosecution of Accused Officers in the first instance; and
- (ii) withdrawing the prosecution orders issued against the Accused Officers against the advice of the Vigilance Commission after consideration of the representation submitted by the Accused Officers, etc.

4. The Departments of Secretariat are aware that any deviation from the advice of the Vigilance Commission will figure in the Annual Reports of the A.P.Vigilance Commission which will be laid on the Table of the State Legislature and the Government will have to explain the reasons for the deviation from the advice of the Vigilance Commissioner to the Legislature.

5. The Government have carefully reviewed the matter and in order to minimise if not to eliminate the cases of deviation from the advice of the Vigilance Commissioner in such matter and to avoid embarrassment of explaining the reasons for deviations to the Legislature, it has been decided that the procedure stipulated in the A.P. Government Business Rules and Secretariat Instructions referred to in para 2 above shall be followed scrupulously by all concerned in all cases in which it is proposed to deviate from the advice of the A.P.Vigilance Commissioner. Any departure to the above procedure will be viewed seriously.